

		confer did not take place at least 5 days before the date the responsive pleading was due. Third, Cross-Complainants present evidence that the email did not “identify with legal support the basis of the deficiencies.” This meet and confer was insufficient. As such, Cross-Defendant is ORDERED meet and confer pursuant to code. Cross-Defendant shall file a declaration setting forth the meet and confer efforts and remaining issues to be determined by the Court following the parties’ code compliant meet and confer efforts. If Cross-Defendant does not file a declaration 9 court days before the continued hearing, the Court will consider the issues raised in the demurrer resolved and the Demurrer to the First Amended Cross-Complaint will go off calendar. The hearing on the Demurrer to the First Amended Cross-Complaint is CONTINUED TO October 13, 2026, at 10:00 AM. No further briefing, except for the Court ordered declaration discussed above. Moving party to give notice.
102	Murillo vs. Juicecrafters Inc. 26-01555793	Motion to Strike Portions Of Complaint Defendant JuiceCrafters, Inc. (“Defendant”) moves to strike Plaintiff’s claim for punitive damages. Plaintiff Marcantonio Murillo (“Plaintiff”) opposed the motion. Civil Code section 3294 states: “(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty

		of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” Importantly, corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive.” (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) “An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees.” (Id.) “But the law does not impute every employee’s malice to the corporation.” (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (Id.) “Managing agents” are employees who “exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy,” such as those “decisions that set these general principles and rules.” (Id., at pp. 167-68; Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 714-15.) Here, the Court finds that the allegations in the Complaint are sufficient to support a claim for punitive damages against the corporate defendant JuiceCrafters, Inc. at this stage in the litigation. The Court finds that
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		the allegations in paragraphs 17-24 state facts sufficient to constitute the requisite oppression, fraud, or malice to support a claim for punitive damages. Moreover, the allegations in paragraph 25 support a claim for punitive damages against a corporation. The Motion is DENIED. Defendant to give notice.
103	Zavala vs. Price 26-01541665	1. Motion to Strike Answer 2. Case Management Conference Plaintiff Regina Zavala, proceeding in pro per, moves to strike Defendant's unverified answer to the verified form complaint. In the motion, Plaintiff also asks the Court to "enforce the court order determining defendant's sole liability in Related Case no. 30-2025-01451705-CU-PA-CJC – Riordan Zavala v. Rochelle Niegas Price." Defendant Rochelle Price did not oppose the motion. On January 20, 2026, Plaintiff filed a notice of related case, identifying Riordan Zavala v. Rochelle Niegas Price, Case No. 30 2025 01451705—CU PA CJC as a related case. The Court finds that the two cases are related. (Cal. Rules of Court, rule 3.300.) As such, this case is transferred to Department C31, which is currently presiding over the related case, Riordan Zavala v. Rochelle Niegas Price, Case No. 30 2025 01451705—CU PA CJC. The motion to strike will be heard in Department C31 on a date to be determined and noticed by the Court. Plaintiff to give notice.